

mean jurisdiction over the subject matter. Bradley v. Fisher, 80 U.S. 646, 651 (1871) The Supreme Court held in Bradley that if a judge had jurisdiction over the subject matter he is clothed with an absolute immunity to civil actions questioning his acts.

If the judge has jurisdiction over the subject matter, he has jurisdiction to determine whether he had jurisdiction over the parties. Baltimore & Ohio Railroad Co. v. Freeze, 82 N.E.761, 169 Ind. 370 (1906), Waugh v. Board of Commissioners of Montgomery County, 115 N.E. 356, 64 Ind. App. 123 (1917).

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II

THE ACT OF JUDGE STUMP IN APPROVING DEFENDANT MCFARLIN'S PETITION WAS A JUDICIAL ACT CONCERNING A MATTER OVER WHICH HE HAD JURISDICTION AND LIABILITY FOR WHICH HE IS IMMUNE.

The approval appended to Defendant Ora E. McFarlin's sworn petition shows on its face that it was approved by Harold D. Stump solely in his role as Judge of the DeKalb Circuit Court. It cannot be seriously contended that the petition was presented to him in any other capacity. The act of approval was a judicial act.

Controlling legal principles involved in the doctrine of judicial immunity are as follows:

A. As a general rule judges are immune from civil actions for damages for acts performed in the course of their official